



### CHAPTER cclx.

An Act for conferring further powers on the London United Tramways Limited for constructing Tramways and widening and altering roads in the Counties of Middlesex and Surrey and for other purposes.

A.D. 1901.

[17th August 1901.]

**W**HEREAS the London United Tramways Limited (in this Act called "the Company") are under the London United Tramways Acts 1873 to 1900 the owners of or have obtained powers to construct tramways in the counties of London Middlesex and Surrey and further powers for the construction of light railways were conferred upon the Company by the London United Tramways Limited (Light Railway Extensions) Order 1898:

And whereas it is expedient that the Company should be empowered to construct the tramways in this Act described and in connexion therewith and with tramways authorised by the London United Tramways Act 1900 to widen and alter the roads in this Act mentioned in that behalf and to work the said tramways by mechanical power and that the other powers in this Act mentioned or referred to should be conferred upon the Company:

And whereas plans and sections showing the lines and levels of the tramways and other works by this Act authorised such plans showing the lands to be taken compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of those lands have been deposited with the clerks of the peace for the counties of Middlesex and Surrey respectively and are in this Act referred to respectively as the deposited plans sections and book of reference:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and



A.D. 1901. Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title. 1. This Act may be cited for all purposes as the London United Tramways Act 1901 and the London United Tramways Acts 1873 to 1900 and this Act may be referred to as the London United Tramways Acts 1873 to 1901.

Incorporation of general Acts. 2. The following Acts and parts of Acts are except where expressly varied by this Act incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts;

Section 3 (Interpretation of terms) and Parts II. and III. of the Tramways Act 1870:

Provided that the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any alteration of or interference with any telegraphic line belonging to, or used by the Postmaster-General. The expression "telegraphic line" in this Act has the same meaning as in the Telegraph Act 1878.

Interpretation. 3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act have the same respective meanings:

The expression "the tramways" means the tramways by this Act authorised.

Correction of errors &c. in deposited plans and book of reference. 4. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown upon the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which such lands are situate for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and a duplicate thereof shall also be deposited with the town clerk of the borough or the clerk to the district council of the urban district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and



thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate. A.D. 1901.

5. Subject to the provisions of this Act the Company may make, form, lay down, work, use and maintain in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections the tramways herein-after described with all proper rails plates sleepers works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for that purpose. Power to make tramways.

The tramways herein-before referred to and authorised by this Act will be situate in the counties of Middlesex and Surrey and are—

Tramway No. 10. (being portions of the tramway described on the deposited plans as Tramway No. 10 and the whole of the tramway described thereon as Tramway No. 10A) commencing in Hampton Court Road (Hampton Court) by a junction with the authorised tramway at a point 116 yards in a north-easterly direction from the centre of the principal entrance to the Mitre Hotel passing thence into and along Palace Gate Hampton Court Bridge Bridge Road (East Molesey) Esher Road Embercourt Road Station Road across High Street (Thames Ditton) a new road to be constructed between High Street and Portsmouth Avenue Portsmouth Avenue Molesey Lane Portsmouth Road Brighton Road Victoria Road Claremont Road Surbiton Crescent Surbiton Road Penrhyn Road Saint James's Road Eden Street Clarence Street Kingston Bridge and approaches and into and along and terminating in the roadway leading from Hampton Court Road to High Street Hampton Wick by a junction with the authorised tramway at a point 47 yards in a north-easterly direction from Church Grove and notwithstanding anything shown on the deposited plans the Company shall not construct any part of so much of Tramway No. 10 shown on the said plans as lies between the commencement and termination of the tramway described on the said plans as Tramway No. 10A or enter upon take or use any part of the property numbered on the deposited plans 14 in the borough of Kingston-upon-Thames and before constructing any part of Tramway No. 10 in Surbiton Crescent the Company shall widen the road at the corner of Surbiton Crescent as shown on the deposited plans;



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Tramway No. 10 will be 5 miles and 9 chains in length of which 4 miles 6 furlongs and 6·30 chains will be double line and 2 furlongs and 2·70 chains single line :

Tramway No. 10B commencing in Eden Street by a junction with Tramway No. 10 by this Act authorised at a point 29 yards in a southerly direction from the King's Arms Tavern passing thence into and terminating in London Road by a junction with Tramway No. 11 by this Act authorised at a point 7 yards in an easterly direction from Richmond Road ;

Tramway No. 10B will be 5·85 chains in length all double line :

Tramway No. 10C commencing in Clarence Street by a junction with Tramway No. 10 by this Act authorised at a point 20 yards in a westerly direction from the east side of the King's Arms Tavern passing thence into and terminating in London Road by a junction with Tramway No. 10B by this Act authorised at a point 12 yards in an easterly direction from the King's Arms Tavern ;

Tramway No. 10C will be 1·35 chains in length all double line :

Tramway No. 10D commencing in London Road by a junction with Tramway No. 10B by this Act authorised at a point 48 yards in an easterly direction from the King's Arms Tavern passing thence into and terminating in Richmond Road by a junction with Tramway No. 11 by this Act authorised at a point 99 yards in a north-easterly direction from Eden Street ;

Tramway No. 10D will be 2·55 chains in length all double line :

Tramway No. 10E commencing in the western approach to Kingston Bridge by a junction with Tramway No. 10 by this Act authorised at a point 93 yards in a westerly direction from Kingston Bridge passing thence into and terminating in the road leading from Hampton Court Road to High Street Hampton Wick by a junction with the authorised tramway at a point 7 yards in a north-easterly direction from the south side of the White Hart Inn ;

Tramway No. 10E will be 1·85 chains in length all double line :

Tramway No. 10F commencing in Hampton Court Road by a junction with the authorised tramway at a point 22 yards in a north-westerly direction from Palace Gate and passing thence along Hampton Court Road and into and terminating in Palace Gate by a junction with Tramway No. 10 by this Act authorised at a point 57 yards in a north-easterly



direction from the centre of the principal entrance to the Mitre Hotel; A.D. 1901.

Tramway No. 10F will be 1·95 chains in length all double line :

Tramway No. 11 commencing in Richmond Road at the northern boundary of the borough of Kingston-upon-Thames passing thence along Richmond Road London Road Cambridge Road and Kingston Road and terminating at the junction of that road with Malden Road (otherwise Traps Lane) New Malden ;

Tramway No. 11 will be 3 miles and 5·75 chains in length of which 3 miles will be double line and 5·75 chains single line :

Tramway No. 12 commencing in Richmond Road by a junction with Tramway No. 11 by this Act authorised at a point 8 yards in a southerly direction from King's Road passing thence into and along King's Road and terminating in that road at a point 20 yards from the east side of Queen's Road ;

Tramway No. 12 will be 5 furlongs and 6·20 chains in length of which 5 furlongs and 5·20 chains will be double line and 1 chain single line :

Tramway No. 13 commencing in London Road by a junction with Tramway No. 11 by this Act authorised at a point 5 yards in a westerly direction from Cambridge Road passing thence along London Road and Kingston Hill and terminating in the last-named road at the boundary of the borough of Kingston-upon-Thames in or nearly in line with the south side of George Road ;

Tramway No. 13 will be 6 furlongs and 5·50 chains in length of which 6 furlongs and 4·50 chains will be double line and 1 chain single line :

Tramway No. 14 commencing in Claremont Road by a junction with Tramway No. 10 by this Act authorised at a point 3 yards in a northerly direction from Victoria Road passing thence into and along Victoria Road and Ewell Road and terminating in the last-named road at a point 12 yards in a south-easterly direction from Red Lion Lane ;

Tramway No. 14 will be 1 mile 2 furlongs and 4·80 chains in length of which 1 mile 2 furlongs and 3·80 chains will be double line and 1 chain single line :

Tramway No. 15 commencing in the Brighton Road (Hook) at a point 17 yards in a southerly direction from Epsom Road passing thence along Brighton Road Ditton Road and Ewell Road and terminating in the last-named road by a junction with Tramway No. 14 by this Act authorised at a point 49 yards in a north-westerly direction from Beaconsfield Road ;



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Tramway No. 15 will be 1 mile 3 furlongs and 2.80 chains in length of which 1 mile 3 furlongs and 1.80 chains will be double line and 1 chain single line.

Power to take up and use existing tramways.

6. Subject to the provisions of this Act the Company may for the purposes of and in connexion with the tramways take up and remove and appropriate to and use in the construction thereof so much of the existing tramways in the streets along which the tramways are intended to be laid as may be convenient or desirable.

Power to widen streets and roads.

7. Subject to the provisions of this Act the Company may in the lines and according to the levels shown on the deposited plans and sections relating thereto make the new road between High Street and Portsmouth Avenue (Thames Ditton) referred to in the description of Tramway No. 10 by this Act authorised and the street or road widenings described or mentioned in the First Schedule to this Act and may enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference relating thereto as may be required for those purposes.

Certain parts of tramways not to be made until streets or carriage-ways widened.

8. Where any part of any street or road or the carriageway thereof is by this Act authorised to be widened the Company shall not lay down or construct any tramway under the powers of this Act in the part of the street or road or carriageway to be so widened unless and until the street or road or carriageway shall have been widened to such extent as may be necessary to leave a space of nine feet six inches between the outside of the footpath and the nearest rail of the tramway on the side of the street or road or carriageway on which such widening is to be made or unless the tramways are in such part of the street or road or carriageway shown on the deposited plans as intended to be so constructed that a less space than nine feet six inches will intervene between the outside of the footpath and the nearest rail of the tramway.

Power to alter levels of roads.

9. Subject to the provisions of this Act the Company may for the purposes of the tramways alter in the manner shown on the deposited sections the levels of the under-mentioned streets or roads (that is to say):—

(a) Embercourt Road and Station Road under and on either side of the bridge carrying the London and South Western Railway over those roads at Thames Ditton Station and also Westingreen Road and the road leading to Church Walk all in the urban district of Esher and the Dittons:

(b) Richmond Road under and on either side of the bridge carrying the London and South Western Railway over that road and also Canbury Park Road both in the borough of Kingston-upon-Thames:



(c) Kingston Road under and on either side of the bridge carrying the London and South Western Railway over that road and also South Lane both in the urban district of The Maldens and Coombe AD 1901A

(d) London Road under and on either side of the bridge carrying the London and South Western Railway over that road and also Station Road and Clifton Road all in the borough of Kingston-upon-Thames.

10. Subject to the provisions of this Act and in addition to any other lands which they are by this Act authorised to acquire the Company may enter upon take hold and use for the purposes of street widenings all or any of the lands houses and premises herein-after described and delineated on the deposited plans and described in the deposited book of reference relating thereto and the Company may sell or may use for the general purposes of their undertaking (other than for erecting a station for generating electrical power) any portions of any lands acquired under this section which may not be required for the purposes of street widenings. Power to acquire additional lands.

The lands and houses herein-before referred to are as follows:—

Certain lands and houses in the parish of East Molesey in the urban district of East and West Molesey on the east side of and adjoining Bridge Road between points respectively 36 yards northward and 40 yards southward from a point in line with the northern side of Palace Road;

Certain lands and houses in the parish of Thames Ditton in the urban district of Esher and The Dittons extending from High Street to Portsmouth Avenue (Thames Ditton) and having a frontage in High Street of 22 yards southward from a point in line with the southern side of Station Road and a frontage in Portsmouth Avenue between points respectively 113 yards and 70 yards from Molesey Lane;

Certain lands in the parish and urban district of Acton on the south side of and adjoining High Street (Acton) between Acton Lane and Winchester Street;

Certain lands in the parish and urban district of Acton on the south side of and adjoining High Street (Acton) between a point 26 yards in a westerly direction from Winchester Street and Oldham Terrace;

Certain lands in the parish of Isleworth in the urban district of Heston and Isleworth on the east side of and adjoining Twickenham Road for a distance of 181 yards northward from Mill Platt;



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Certain lands and houses in the parish of Isleworth in the urban district of Heston and Isleworth on the east side of and adjoining Twickenham Road between points respectively 117 yards and 24 yards in a northerly direction from the fire station;

Certain lands and houses in the parish of Isleworth in the urban district of Heston and Isleworth on the west side of and adjoining Twickenham Road between points respectively 42 yards and 78 yards in a southerly direction from Saint John's Road;

Certain lands and houses in the parish of Isleworth in the urban district of Heston and Isleworth on the west side of and adjoining Twickenham Road between points respectively 57 yards and 39 yards in a northerly direction from the fire station;

Certain lands and houses in the parish of Isleworth in the urban district of Heston and Isleworth on the east side of and adjoining Twickenham Road between points respectively 8 yards in a northerly direction and 67 yards in a southerly direction from the south side of Worton Lane;

Certain lands and houses in the parish and urban district of Twickenham on the north-west side of and adjoining Richmond Road for a distance of 54 yards in a north-easterly direction from Oak Lane;

Certain lands and houses in the parish and urban district of Twickenham on the west side of and adjoining Richmond Road between points respectively 67 yards and 108 yards in a northerly direction from Cambridge Park Gardens;

Certain lands in the parish and urban district of Twickenham on the south-east side of and adjoining Richmond Road and also the public lane known as Saint Stephen's Lane between a point 36 yards in a northerly direction from Cambridge Park Mews and a point opposite to the eastern side of Park Road.

Power to  
acquire  
lands for  
generating  
station.

11. Subject to the provisions of this Act and in addition to any other lands which they are by this Act authorised to acquire the Company may enter upon take use and hold for the purposes of a station for generating electricity the lands and houses herein-after described delineated on the deposited plans and described in the deposited book of reference relating thereto (that is to say):—

Certain lands in the parish and urban district of Chiswick on the north side of and adjoining the High Road Chiswick between points respectively 104 yards and 182 yards in an easterly



direction from Upham Park Road and extending northward to the northern boundary of the land now occupied by the Company : A.D. 1901.

And the Company may on any part of the said lands erect maintain and use such buildings engines dynamos and other machinery apparatus works and conveniences as may be necessary or suitable for generating electricity and may for the purpose of supplying electrical power for working their tramways or light railways or any of them use any generating station constructed under this Act as well as any existing or authorised generating station of the Company and may supply electrical power therefrom But nothing in this Act shall authorise the Company to erect or construct any station for generating electrical power elsewhere than on the lands described in this section.

12. In addition to any lands they now hold or are authorised to purchase or acquire and to the other lands which by this Act the Company are authorised to purchase and acquire they may purchase or acquire by agreement for the purposes of their undertaking and may hold any lands not exceeding five acres and they may on such lands and on any lands purchased or acquired under the authority of this Act erect or construct and hold carriage and engine houses sub-stations shelters stables offices buildings and other conveniences (except stations for generating electricity) in connexion with their undertaking But nothing in this Act shall exonerate the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any land purchased or acquired by agreement under the powers of this section. Purchase of lands by agreement.

13. Where any tramway constructed under this Act shall pass any land or building vested in or under the control of the Principal Secretary of State for the War Department no crossing passing place siding junction or other work opposite to such land or building shall be constructed until it shall have been approved by the said Secretary of State or by an officer acting on his behalf and if at any time it shall in the opinion of the said Secretary of State be desirable that such crossing passing place siding junction or other work shall be altered or removed the Company shall alter or remove it to the satisfaction of the Secretary of State within twenty-eight days from the time at which they are called upon to do so. For protection of War Department.

The Company shall not permit any of their engines or carriages to stop or stand upon their tramway opposite or near to the entrance



A.D. 1901. to any lands or buildings vested in or under the control of the said Secretary of State in such manner as to interfere with access to or from such lands or buildings.

For protection of London and South Western Railway Company.

14. For the protection of the London and South Western Railway Company (in this section referred to as "the South Western Company") the following provisions shall apply and have effect:—

(a) The Company shall not in working the tramways obstruct or interfere with the free passage of persons or vehicles to or from the entrances to or exits from the stations of the South Western Company and vehicles used on the said tramways shall not without the approval of the South Western Company pull up opposite to or within ten yards of either side of a point opposite such entrances or exits:

(b) Before constructing any works by this Act authorised passing over or under the railway of the South Western Company or within ten yards thereof (herein-after referred to as "the said works") the Company shall deliver to the South Western Company for approval by their engineer plans drawings and specifications (in this section referred to as "the said plans") showing the manner in which the said works are intended to be carried out and the materials to be used and in the event of his failing to approve the said plans for one month after the delivery thereof the same shall be referred for settlement to an arbitrator to be appointed as herein-after provided and the said works shall be executed in accordance with the said plans and subsequently maintained by the Company at their sole expense and under the superintendence and to the satisfaction of the engineer of the South Western Company:

(c) The Company shall bear and on demand pay to the South Western Company all reasonable costs of the superintendence by them of the construction of the said works and repairs thereof and all reasonable costs of watching lighting and protection of the railway of the South Western Company with reference to and during such construction and repairs but such superintendence by the South Western Company shall not relieve the Company from liability for any accident which may be occasioned by or through the operations of the Company or of their contractors agents or workmen:

(d) The Company shall indemnify the South Western Company against all claims and compensate them for any injury which may happen to the property or works of the South Western Company or to any persons using their railway in consequence



of or arising from the construction of the said works but the appointment by the South Western Company of any inspector or the superintendence of the said works by the South Western Company shall not relieve the Company from any liability in connexion therewith :

(e) Any additional expense of the maintenance of the structure of any of the bridges arising from the construction of the said works and the costs of any underpinning or other works rendered necessary to secure the safety and stability of such bridges where the existing levels are lowered shall be borne and paid by the Company as also any reasonable costs of the alterations in the positions of telegraph and telephone wires of the South Western Company including any guard wires rendered necessary by the construction of the said works :

(f) The South Western Company shall be at liberty at their own expense to divert or stop (but only for so long as may be absolutely necessary for the purposes in this subsection mentioned) any of the tramways passing over or under the railways of the South Western Company if required for the purpose of executing repairs alterations extension or widening of any of the bridges carrying the railway of the South Western Company over such tramways or the tramways over the said railways and the South Western Company shall not be liable for any compensation claim demand damages costs or expenses for or in respect of such diversion or stoppage :

(g) Any difference which may arise between the South Western Company and the Company touching any of the matters referred to in this section shall be decided by a single arbitrator to be agreed on between the parties or failing agreement to be appointed on the application of either party by the Board of Trade and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889.

15. For the protection of the Governor and Company of Chelsea Waterworks and of the Company of Proprietors of Lambeth Waterworks (in this section severally referred to as "the protected company") the following provisions shall apply and have effect :—

(a) Whenever the construction of the works by this Act authorised necessitates the removal deviation alteration or support of any pipe or main of the protected company the work of removal deviation alteration or support so necessitated shall if they so desire be done by the protected company or their authorised contractors under the superintendence of the protected company or an engineer to be nominated by them at such time of the

For protection of Chelsea Waterworks Company and Lambeth Waterworks Company.



A.D. 1901.

year as the protected company may reasonably select but so as not to unduly delay the construction of the works by this Act authorised and the reasonable expenses of the protected company in connexion therewith shall be paid by the Company :

(b) The foregoing provisions of this section shall be in addition to and not in substitution for or derogation from any other powers rights or privileges whether statutory or otherwise of the protected company :

(c) Any difference which may arise between the protected company and the Company touching any of the matters referred to in this section shall be decided by a single arbitrator to be agreed on between the parties or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers for the time being and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889.

Restrictions  
on displacing  
persons of  
labouring  
class.

**16.—**(1) The Company shall not under the powers of this Act purchase or acquire in any metropolitan borough or in the City of London (which metropolitan boroughs and city are in this section referred to as "London") twenty or more houses or in any borough or other urban district outside London and elsewhere than in any borough or urban district in any parish ten or more houses which on the fifteenth day of December last were or have been since that day or shall hereafter be occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers unless and until the Company—

(a) Shall have obtained the approval in the case of London of the Secretary of State for the Home Department or in any other case of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the fifteenth day of December last or for such number of persons as the Secretary of State or the Local Government Board (as the case may be) shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case ; and

(b) Shall have given security to the satisfaction of the Secretary of State or the Local Government Board (as the case may be) for the carrying out of the scheme.



(2) The approval of the Secretary of State or the Local Government Board (as the case may be) to any scheme under this section may be given either absolutely or conditionally and after the Secretary of State or the Local Government Board (as the case may be) have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

Provided that the Secretary of State or the Local Government Board (as the case may be) may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Secretary of State or the Local Government Board (as the case may be) may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the Secretary of State or the Local Government Board (as the case may be) out of the High Court.

(5) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary of State or the Local Government Board (as the case may be) by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of such purchase sections 176 (Regulations as to purchase of land) and 297 (As to Provisional Orders) of the Public Health Act 1875 shall be incorporated with this Act and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a local authority within the meaning of the Public



AD. 11901. Health Act 1875 and the scheme were one of the purposes of that Act and as if (in the case of lands in London) the Secretary of State were substituted for the Local Government Board.

(7) The Company may on any lands belonging to them or purchased or acquired under this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of such scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the Secretary of State or the Local Government Board (as the case may be) may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as he or they may see fit.

(8) All buildings erected or provided by the Company in London for the purpose of any scheme under this section shall be subject to the provisions of the London Building Act 1894 (Local) and any other Act or Acts relating to buildings in the county of London.

(9) Notwithstanding anything to the contrary in section 157 of the Public Health Act 1875 the provisions of that section and of sections 155 and 156 of the same Act shall apply to buildings outside London erected or provided by the Company for the purpose of any scheme under this section.

(10) The Secretary of State or the Local Government Board (as the case may be) may direct any inquiries to be held by any persons appointed or employed by him or them as inspectors which he or they may deem necessary in relation to any scheme under this section or to the carrying out thereof and may appoint or employ inspectors for the purposes of any such inquiry and the inspectors so appointed or employed shall for the purposes of any such inquiry have all such powers as the inspectors of the Local Government Board have for the purposes of inquiries directed by the Local Government Board under the Public Health Act 1875.

(11) The Company shall pay to the Secretary of State any expenses incurred by him in relation to any inquiries under this



section including the expenses of any witnesses summoned by the inspector and a reasonable sum to be fixed by the Secretary of State for the services of such inspector. A.D. 1901.

(12) The Company shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

(13) Any houses purchased or acquired by the Company for or in connexion with any of the purposes of this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the labouring class within five years before the passing of this Act and for which houses no substitutes have been or are directed to be provided by any scheme approved by the Secretary of State or the Local Government Board (as the case may be) under any previous Act relating to the Company shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the Secretary of State or the Local Government Board (as the case may be) is or are unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Secretary of State or the Local Government Board (as the case may be) they might have been sufficient to accommodate.

(14) For the purposes of this section the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them and the expression "house" means any house or part of a house occupied as a separate dwelling.

17. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company Power to owners to grant easements &c.



A.D. 1901. any easement right or privilege required for the purposes of this Act (not being an easement right or privilege of water in which any persons other than parties to the agreement have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Owners may be required to sell parts only of certain properties.

18. And whereas in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other greater or less portions thereof can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term “the owner” and the said properties are herein-after referred to as “the scheduled properties”:
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrator or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as “the tribunal”) shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other greater or less portions thereof (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:



- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.



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The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Period for compulsory purchase of lands.

19. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for completion of tramways.

20. If the tramways are not completed as regards tramways in the borough of Kingston-upon-Thames and the tramways and portions of tramway connecting the same with the authorised tramways of the Company at Hampton Wick and with Surbiton Station respectively within three years and a half and as regards the other tramways by this Act authorised within four years from the passing of this Act then on the expiration of those respective periods the powers by this Act granted to the Company for constructing the same or otherwise in relation thereto shall cease except as to so much thereof respectively as shall be then completed.

Penalty imposed unless tramways opened within limited time.

21. If the Company fail within the period limited by this Act to complete the tramways or any of them and open the same for public traffic the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the said tramways are completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the uncompleted tramway or tramways. And the said penalty may be applied for by any road authority landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in the third section of the Railway and Canal Traffic Act 1854. Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as herein-after provided. But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company was prevented from completing or opening any tramway by unforeseen accident or circumstances beyond their control. Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application of penalty.

22. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London



Gazette shall be applied towards compensating any landowners or other persons whose property may have been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the tramways or any portion thereof in respect of the non-completion of which the same was recovered and also in compensating all road authorities for the expense incurred by them in taking up any tramway or materials connected therewith placed by the Company in or on any road vested in or maintainable by such road authorities respectively and in making good all damage caused to such roads by the construction or abandonment of such tramway and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation shall be payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid shall have been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or if the Company is insolvent and has been ordered to be wound up or the tramway or tramways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or to the liquidator or liquidators of the Company or be applied in the discretion of the Court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the Company.

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**23.** The sections herein-after referred to of the London United Tramways Act 1898 and the London United Tramways Act 1899 respectively are hereby incorporated with this Act and shall extend and apply to the tramways and to the Company in respect thereof as fully and effectually as if those sections had been re-enacted in this Act with reference thereto (that is to say):—

Incorporating provisions of Acts of 1898 and 1899.

**London United Tramways Act 1898—**

- Section 23 Gauge and mode of formation of tramways;
- Section 24 Inspection by Board of Trade;
- Section 25 As to rails of tramways;
- Section 26 Further provisions as to construction of tramways;
- Section 27 Penalty for not maintaining rails and roads in proper order;
- Section 28 Tramways to be kept on level of surface of roads;
- Section 29 Application of road materials excavated in construction of tramways;
- Section 30 Power to make additional crossings &c.;



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Section 31 Temporary tramways may be made when necessary ;

Section 32 Local authority to have access to sewers ;

Section 38 Provisions as to motive power ;

Section 40 Byelaws ;

Section 41 Recovery of penalties ;

Section 42 Amendment of the Tramways Act 1870 as to byelaws by local authority ;

Section 43 Orders &c. of Board of Trade ;

Section 47 Tolls on tramways ;

Section 48 Agreements with local and road authorities ;

Section 50 Provisions as to arbitration :

*London United Tramways Act 1899—*

Section 12 Special provisions as to use of electrical power :

And in construing the said sections for the purposes of this Act the expressions “ the tramways ” and “ the Middlesex tramways ” shall mean the tramways by this Act authorised.

As to powers of Board of Trade in respect of use of mechanical power.

24. The powers of the Board of Trade under section 38 of the *London United Tramways Act 1898* and section 12 of the *London United Tramways Act 1899* as incorporated with this Act shall be deemed to include power subject to the provisions of those sections to make regulations requiring the Company to use such reasonable precautions including insulated returns as the Board of Trade may think necessary for the purposes of the said section 12 and the Board of Trade may in like manner from time to time alter any such regulations.

For protection of Postmaster-General.

25. Section 44 of the *London United Tramways Act 1898* is hereby repealed and in lieu thereof the following provisions shall have effect (that is to say) :—

In the event of any tramways of the Company being worked by electricity the following provisions shall have effect :—

(1) The Company shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration :



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—

- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the undertaking of the Company the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working any tramways of the Company by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster General and the Company as to any requirement so made shall be determined by arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations :
- (5) If a telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company be injuriously affected and he is unable to ascertain whether such injurious affection is caused by the Company or by any other persons generating or using electric currents for traction purposes the Postmaster-General may give notice to the



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Company requiring them to make at such times as he may specify such experiments (by working their generating stations running their cars or otherwise working any part of their undertaking or in case of continuous working by stopping the current generated for the purposes of their undertaking at such times as would not unduly interfere with the traffic) as he may deem necessary to enable him to discover which of the undertakings causes the disturbance and such experiments shall be carried out by the Company as and when required by the Postmaster-General :

(6) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

(7) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the Court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

(8) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :

(9) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :

(10) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :

(11) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the



application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Company or their agents were a company within the meaning of that Act: A.D. 1901.

(12) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid:

(13) In this section the expression "the Company" includes their lessees and any person owning working or running carriages on any of the tramways of the Company.

26. In the event of the carriages used on the tramways being moved by electrical power the following provisions shall have effect:—

For protection of telegraphic lines of War Department.

If at any time it is established to the satisfaction of the Board of Trade that any work of the Company or their supply of energy injuriously affects any telegraphic line of the War Department the Board of Trade may by order specify the matter complained of and require the Company to abate or discontinue it within such period as is therein limited in that behalf and if the Company make default in complying with the order they shall be liable to a penalty not exceeding twenty pounds for every day during which the default continues.

27. The Company may execute all such works on or in connexion with the tramways and in over or under the streets roads or bridges in or over which the same are laid as may be necessary or expedient for working the tramways by mechanical power as aforesaid and may lay down construct erect and maintain on in under or over the surface or bed of any street road footway bridge river or place and may with the consent in writing of the owner and occupier of any house or building attach to such house or building such posts conductors wires tubes mains plates cables boxes and apparatus and may make and maintain such openings and ways in on or under any such surface or bed as may be necessary or convenient either for the working of the tramways or for connecting any portions of the tramways or for providing access to or forming connexions with any generating station or other stations engines machinery or apparatus and all works to be executed by the Company in pursuance of the powers of this section shall be deemed to be works of a tramway subject in all respects to the

Power to erect posts &c.



A.D. 1901. — provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

Alteration  
of tramways.

28. The Company may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of their tramways. Provided that in the exercise of the powers of this section no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Company within three weeks after receiving from the Company notice in writing of their intention express their objection thereto.

Cheap fares  
for labouring  
classes.

29.—(1) The Company at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight o'clock in the morning or earlier than five o'clock in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance. On Saturdays the Company in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Company to provide such service as may appear to the Board to be reasonable.

(3) The Company shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

As to fares  
on Sundays  
and holidays.

30. It shall not be lawful for the Company or any other company or person working or using the tramways to take or demand on Sundays or any bank or other public holiday any higher tolls or charges than those levied by them on ordinary week days.

Future  
purchase of  
undertaking

31. Section 43 of the Tramways Act 1870 shall not apply to the tramways and in lieu thereof the provisions with respect to



purchase of tramways contained in the section of this Act for the protection of the Corporation of Kingston-upon-Thames shall apply to so much of the tramways as is situate in the district of that authority and the following provisions shall apply to the tramways situate in the respective urban districts of Hampton Hampton Wick Esher and the Dittons the Maldens and Coombe East and West Molesey and Surbiton (that is to say):—

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by local  
authorities.

The local authority of any such last-mentioned district may if by resolution passed in manner prescribed by section 43 of the Tramways Act 1870 they so decide within six months after the expiration of a period of twenty-five years from the passing of this Act or within six months after the expiration of every subsequent period of seven years by notice in writing require the Company to sell and thereupon the Company shall sell to them so much of their undertaking in respect of such of the tramways as are situate within the district of such local authority upon terms of paying the fair market value thereof as a going concern but without any allowance for compulsory purchase such value to be in case of difference determined by an engineer or other fit person nominated as referee by the Board of Trade on the application of either party and the expenses of the reference to be borne and paid as the referee directs:

The local authorities may pay the purchase-money and all expenses incurred by them under the authority of this section out of the like rate and shall have the like powers to borrow on the security of the same as if such expenses were incurred in applying for obtaining and carrying into effect a Provisional Order obtained by them under the Tramways Act 1870.

**32.** For the protection of the council of the administrative county of Surrey (herein-after called "the Surrey Council") the following provisions shall notwithstanding anything contained in this Act or shown on the deposited plans or sections have effect and shall unless otherwise expressed apply to the tramways described in this Act as No. 10 No. 10B No. 10c No. 10D No. 10E No. 11 No. 12 No. 13 No. 14 and No. 15 so far as the same respectively are authorised to be made over main roads or county bridges in the county of Surrey and to the bridges across the River Thames known as Kingston Bridge and Hampton Court Bridge:—

For pro-  
tection of  
Surrey  
County  
Council.

(1) The portions of the roadways repairable or to be paved by the Company under this Act shall be paved with hard wood blocks



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of such character and quality as shall be approved by the Surrey county surveyor (in this section called "the surveyor") subject to any agreement with the local authority with respect to any main road which the local authority has claimed to retain under the provisions of section 11 of the Local Government Act 1888 and be based on a sufficient bed of concrete and grouted and be maintained renewed and made good when required by the surveyor and all such work shall be executed to the satisfaction of the surveyor:

- (2) Where the rails of a tramway are within three feet of the existing kerbs or footpaths the Company shall pave the entire width of the roadway and maintain renew and make good the same as aforesaid:
- (3) Opposite and for a distance of 7 yards on either side of the road frontage of all churches chapels public schools and buildings habitually used for public meetings and public assemblies the entire width of the roadway shall be paved by the Company in manner aforesaid:
- (4) Concurrently with the laying of the tramway and if in any case the Surrey Council so desire the portion of roadway not repairable by the Company shall be paved by the Company at the expense of the Surrey Council or (if so agreed) by the local authority:
- (5) If in any case tolls or fares charged on a tramway laid on a main road are not agreed between the Company and the local authorities respectively and in the opinion of the Surrey Council are excessive the question as to the reasonableness of such tolls or fares shall if the Surrey Council so desire be referred to the Board of Trade who may thereupon if they deem fit revise and settle the said tolls and fares:
- (6) The street widenings and improvements of main roads on the tramways mentioned in this section and which are scheduled to this Act and the further street improvements and the bridge widenings on those tramways in this subsection hereafter described to the extent and as indicated on plans signed by James Clifton Robinson and Francis Grinham Howell shall (subject as in this subsection is mentioned) be executed by the Company at their own expense in accordance with plans and specifications to be approved by the surveyor and to his reasonable satisfaction in all things before any of the lines where such widenings and improvements are to be made shall



be opened for public traffic save to such extent as the Surrey Council may agree (that is to say) :—

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| Marked on Plan. | Number of Tram-way. | Name of Road.   | Urban District.          | Side of Road. | Description.                                                                                                   |
|-----------------|---------------------|-----------------|--------------------------|---------------|----------------------------------------------------------------------------------------------------------------|
| H               | 10                  | Claremont Road. | Surbiton Urban District. | West          | Carriageway to be widened on the west side and the statutory 9 feet 6 inches margin left on the east side.     |
| I               | 10                  | Brighton Road.  | Ditto -                  | North-east.   | From a point 150 feet north-west of Maple Road for a distance of about 600 feet in a north-westerly direction. |
| J               | 15                  | Hook Road       | Ditto -                  | East          | Carriageway to be widened from Ditton Road to Epsom Road Hook so as to make the carriageway 24 feet.           |
| K               | 10                  | Mole Bridge     | East and West Molesey.   | —             | Bridge to be widened to 45 feet.                                                                               |
| L               | 10                  | Ember Bridge.   | Ditto -                  | —             | Ditto.                                                                                                         |

The Company shall use their best endeavours to obtain in the next Session of Parliament all necessary powers for effecting the said widenings including powers for the compulsory acquisition of all necessary land. Provided that if in any case the Company having used their best endeavours are unable to obtain sufficient land to admit of a double line of tramway with a margin of 9 feet 6 inches between the outer rail thereof and the kerb and with footpaths of an agreed width the Company shall obtain as much land as possible for the purpose aforesaid and shall execute such modified widening as may be directed by the Surrey Council. Provided also that for the purposes of this subsection the expression "lands" shall not include houses or other existing buildings:

- (7) All street widenings improvements and all works to be done upon any road to which this section applies shall be proceeded with continuously and completed with all reasonable despatch:
- (8) The following provisions of the London United Tramways Act 1900 shall mutatis mutandis apply to all the tramways to which this section applies as if the same were incorporated



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herewith and the authorities or persons for whose protection they enure were the Surrey Council (that is to say) :—

Section 35 subsection (2) section 36 subsections (5) (13) (14) (15) (16);

Section 37 subsection (4) section 39 subsection (5) (a) (b) (c) (d);

Section 40 subsection (2):

(9) All posts standards brackets and other works erected by the Company on any road or bridge to which this section applies and of a character usually painted shall be painted by the Company with good oil paint of a colour or colours approved by the surveyor at least once in every three years and no advertisements shall be placed on such posts standards brackets or other works except notices relating to the tramways:

(10) Where in any case any contract or agreement at variance with the provisions of this section has been or may be made between the Company and any local authority in respect of matters to be done by the Company on any main road (situate elsewhere than in the borough of Kingston-upon-Thames) to which this section applies the provisions of this section shall so far as practicable prevail and be binding upon the Company unless the Surrey Council shall by writing under their common seal waive or modify any of such provisions:

(11) Subsections (1) (8) and (9) of this section shall not apply to any tramway or portion of tramway situate in the borough of Kingston-upon-Thames:

(12) If any difference shall arise between the Surrey Council and the Company concerning any matter or thing herein contained or as to the reasonableness of any requirement of the Surrey Council or the surveyor then and in every such case the difference shall be referred to a single arbitrator to be agreed on between the parties or in default to be nominated by the Board of Trade and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889.

For protection of  
Middlesex  
County  
Council.

33. For the protection of the council of the administrative county of Middlesex (herein-after called "the council") the following provisions shall notwithstanding anything contained in this Act have effect and shall unless otherwise expressed apply to the tramways authorised by this Act so far as they are authorised to be made over main roads in the county of Middlesex and to the



bridges across the River Thames known as Kingston Bridge and Hampton Court Bridge:— A.D. 1901.

- (1) The Company shall not without the previous consent of the council (which consent shall not be unreasonably withheld) at any time break up any main road or interrupt the traffic thereon for more than half the width of the roadway of such main road at any one time:
- (2) The portions of the roadways repairable or to be paved by the Company under this Act shall be paved with hard wood blocks of such character and quality as shall be approved by the Middlesex county surveyor (in this section called "the surveyor") subject to any agreement with the local authority with respect to any main road which the local authority has claimed to retain under the provisions of section 11 of the Local Government Act 1888 and be based on a sufficient bed of concrete and grouted and be maintained renewed and made good when required by the surveyor and all such work shall be executed to the satisfaction of the surveyor:
- (3) Where the rails of a tramway are within three feet of the existing kerbs or footpaths the Company shall pave the entire width of the roadway and maintain renew and make good the same as aforesaid.

**34.—**(1) In this section the expression "bridge authority" means as to Hampton Court Bridge the county councils of Surrey and Middlesex and as to Kingston Bridge the Kingston Bridge trustees and the said county councils.

Provisions  
as to Hamp-  
ton Court  
and Kingston  
Bridges.

(2) Before commencing to construct the tramway over Hampton Court Bridge and if in the opinion of the bridge authority the construction or working of the tramway is likely to endanger the stability and safety of the said bridge the Company shall upon being required by the bridge authority so to do strengthen the bridge in such manner and to such extent as shall be agreed on between the bridge authority and the Company or as failing such agreement shall be determined by Sir John Wolfe Barry or some other engineer to be agreed on between the parties or to be nominated by the Board of Trade All works to be executed upon or in connexion with the said bridge shall be done under the superintendence and to the reasonable satisfaction of the bridge authority:

In the event of the said bridge being at any time reconstructed or widened by the bridge authority the Company shall if the cost thereof (together with any cost which may have been incurred by the Company in strengthening the bridge in manner aforesaid) does



A.D. 1901. — not exceed ten thousand pounds pay the whole of such cost. If the cost of reconstruction and widening as aforesaid (with or without any cost incurred in such strengthening as aforesaid as the case may be) exceeds ten thousand pounds the Company shall contribute thereto as and when required by the bridge authority sums not exceeding in the whole ten thousand pounds before the bridge authority shall be required to pay any sum in respect of such cost.

(3) In the event of Kingston Bridge being at any time reconstructed or widened by the bridge authority the Company shall if the cost thereof does not exceed ten thousand pounds pay the whole of such cost. If the said cost exceeds ten thousand pounds the Company shall contribute thereto as and when required by the bridge authority sums not exceeding in the whole ten thousand pounds before the bridge authority shall be required to pay any sum in respect of such cost.

(4) If in the case of either of the said bridges the Company shall give notice in writing to the bridge authority of their intention to construct tramways over the same and if the bridge authority shall reconstruct and widen such bridge and it shall be found that the Company's contribution of ten thousand pounds will fall short of one-third of the cost of and incidental to the reconstruction and widening of such bridge including the costs charges and expenses (if any) of obtaining any powers which it may be necessary to obtain for such reconstruction and widening then and in such case the Company shall pay to the bridge authority the difference between such one-third and the said sum of ten thousand pounds.

For protection of corporation of Kingston-upon-Thames.

**35.** Notwithstanding anything in this Act contained or shown on the deposited plans the following provisions shall have effect for the benefit and protection of the mayor aldermen and burgesses of the borough of Kingston-upon-Thames (that is to say) :—

(1) In this section the expressions "the borough" means the borough of Kingston-upon-Thames "the corporation" means the mayor aldermen and burgesses of the borough and "the surveyor" means the borough surveyor for the borough :

(2) Where the rails of the tramways by this Act authorised within the borough are within three feet of the existing kerbs the Company shall pave the entire width of the roadway in such manner and with such material as may have been or may be agreed between the corporation and the Company :

(3) The Company shall run a service of cars with intervals of not more than ten minutes each between the hours of 8 a.m.



and 8 p.m. at fares not exceeding one penny for each journey      A.D. 1901.  
on the following routes:—

- (a) Surbiton Station and Ham boundary;
  - (b) Surbiton Station and Kingston Hill;
  - (c) The authorised tramways at the Hampton Wick end of Kingston Bridge and the Malden boundary:
- (4) The Company shall not charge more than one penny between any two points in the borough or between Surbiton Station and the authorised tramways of the Company at Hampton Wick aforesaid or between any point in the borough and (a) Surbiton Station and (b) the said authorised tramways in Hampton Wick provided that there is a through service of cars between such points:
- (5) Workmen's cars shall be run in accordance with the provisions of the section of this Act of which the marginal note is "Cheap fares for labouring classes." at half of the above fares:
- (6) All cars used in the borough shall be of the best modern type and they and all wires poles and other constructions shall be maintained in a state of efficient repair to the reasonable satisfaction of the corporation:
- (7) The provisions of section 43 of the Tramways Act 1870 shall extend and apply to all tramways within the borough by this Act authorised save that the period at which the corporation may first exercise the powers of purchase given by the said section 43 shall be six months after the expiration of a period of twenty-five years from the passing of this Act or six months after the expiration of every subsequent period of seven years and the provisions of the section of this Act the marginal note of which is "Future purchase of undertaking by local authorities" shall not apply to the tramways within the borough:
- (8) The street widenings and improvements within the borough described or mentioned in the First Schedule to this Act and the further street improvements to the extent and as indicated on the agreed plans signed by James Clifton Robinson on behalf of the Company and Kincaid Waller and Manville on behalf of the corporation and numbered respectively 1 to 4 (except the widening of Surbiton Road adjoining Surbiton Hall shown on the said plan numbered 1) shall be completed by the Company to the reasonable satisfaction of the Corporation before any of the tramways within the borough are opened for public traffic:



A.D. 1901.

(9) In consideration of the extension of the period of purchase contained in subsection (7) of this section the Company shall as from the opening of the tramways within the borough for public traffic and until purchase thereof pay to the corporation by equal quarterly payments on the usual quarter days the following annual sums viz. during the first five years to be calculated from the date of the passing of this Act the sum of two hundred and twenty-five pounds during the next ten years the sum of four hundred and fifty pounds and during the remaining period the sum of seven hundred pounds Provided that such payments shall not commence until the said tramways within the borough are opened for public traffic :

(10) Unless the corporation otherwise agree—

(a) The Tramways Nos. 10 11 and 13 shall be constructed and maintained as single lines of tramway where so shown on the copy of the deposited plans signed by James Clifton Robinson on behalf of the Company and Kincaid Waller and Manville on behalf of the corporation and shall be laid as nearly as possible in the middle of the roads in which the same will be situate Provided that if the road in which any such portions of tramways or any part thereof will be situate is hereafter widened so that a space of not less than nine feet six inches would intervene between the outside of the footpaths on both sides of the road and the nearest rail of the tramway if laid as a double line as originally shown on the deposited plans such portion of tramway or part thereof (as the case may be) may be so laid ;

(b) The Tramway No. 10 in Eden Street for the distance between Fairfield Road and Ashdown Road shall be constructed and maintained as an interlacing line in accordance with the copy of the deposited plans so signed and shall be laid as near as possible in the middle of the road ;

(c) The Tramway No. 10 where it passes over Kingston Bridge shall be constructed and maintained as a double line :

(11) All the tramways in the borough authorised by this Act and the connexions thereof with the said authorised tramways in Hampton Wick and with Surbiton Station shall be completed before any of such tramways are open for traffic unless otherwise agreed between the corporation and the Company and all such tramways (including the aforesaid connexions) shall be bonâ fide worked in manner most advantageous to the public and in the event of any difference arising between the



corporation and the Company as to the manner of working such tramways the same shall be determined by an arbitrator as herein-after provided. The Company shall be liable to a penalty of five pounds a day for every day on which they fail to work their tramways in the manner provided by this subsection or in case of difference in accordance with the decision of the arbitrator and such penalty may be recovered by the corporation summarily : A.D. 1901.

(12) Except in cases of emergency trailer cars shall not be run in the borough and the Company shall not work the tramways within the borough by other than electrical power except that in case of emergency animal power may be used :

(13) The Company shall deliver any such surplus paving metalling or material as is referred to in section 29 of the London United Tramways Act 1898 incorporated with this Act excavated from any roads within the borough at such places within the borough as the surveyor may from time to time require and the said section in its application to the paving metalling and material of roads within the borough shall be read and have effect accordingly :

(14) Plans and drawings of cars and rolling stock shall be submitted for the approval of the corporation at the same time as they are submitted for approval to the Board of Trade :

(15) The alteration of the levels of Richmond Road and London Road by this Act authorised and any alterations of sewers consequent thereon shall be done to the reasonable satisfaction of the corporation :

(16) All work in the borough in connexion with the tramways and works shall be proceeded with continuously and completed with all reasonable despatch :

(17)—(A) The size position design and construction of all posts standards and brackets and their several attachments erected in the borough shall be such as the corporation may reasonably approve or as in case of difference between the corporation and the Company may be determined by the Board of Trade Provided that—

(i) If before the erection of any such posts standards brackets and attachments in the borough the Company deliver to the corporation a drawing and a description of the same and a plan showing the proposed position thereof and the corporation do not within twenty-eight days give notice to the Company of any objection they shall be taken to have



A.D. 1901.

agreed to the size position design and construction of such posts standards brackets and attachments as shown by the said drawing description and plan; and

(ii) If any post or overhead wire becomes owing to the construction of any new road or otherwise in the opinion of the corporation an obstruction the Company shall alter the position thereof in such manner as the corporation direct but the Company may appeal against such direction to the Board of Trade and the decision of the Board shall be final :

(B) The corporation shall upon giving not less than fourteen days' notice to the Company of their desire to do so have the right to use any posts standards and brackets erected in the streets within the borough for the support of any electric lamps or wires for the lighting of street lamps or for the support of any fire-alarms name-plates or street indicators Provided that in the exercise of the powers of this subsection no avoidable damage shall be caused to such posts standards or brackets and no obstruction or interference shall be caused to or with the working by the Company of their undertaking and if the corporation occasion any damage in the exercise of the powers of this subsection they shall pay compensation to the Company the amount thereof to be determined in default of agreement by an arbitrator as herein-after provided :

(c) All such posts standards brackets and other works erected by the Company in any street as are usually painted or as are suitable to be painted shall be painted by the Company with good oil paint of a colour or colours to be approved by the corporation at least once in every three years :

(d) No advertisement shall be displayed upon any such posts standards brackets or works or other fixed property of the Company in any street within the borough except advertisements relating to the working and use of the tramways :

(18) The Company shall not use the tramways within the borough for the conveyance of animals minerals or goods except under regulations to be approved by the corporation :

(19) The Company at the time of giving notice to the corporation of their intention to open or break up the roads for the purpose of laying down any of the tramways within the borough shall also submit to the corporation a plan and section showing the proposed mode of constructing laying down and maintaining the same and a statement of the materials intended to be used therein and the Company shall not commence such works or



any of them until such last-named plan section and statement have been approved in writing by the surveyor which approval shall not be unreasonably withheld and notice of approval or disapproval shall be given within fourteen days from the date of the submission of such plans and sections and statement failing which the approval shall be deemed to have been given and after such approval the works shall be executed in accordance with such plan section and statement as so approved. All notices and plans shall be deposited twenty-one days at least before the commencement of the works specified or shown therein and all plans shall be deposited in duplicate:

(20) If the tramways within the borough shall pass over or interfere with any manhole surface or foul water sewer or pipe which in the opinion of the surveyor it would be dangerous or inconvenient to retain in its position under the said tramways the Company shall at their own expense take up such manhole surface or foul water sewer or pipe and relay or replace the same in the part of the road not occupied by the said tramways to the satisfaction of the said surveyor:

(21) The Company shall deliver to the corporation a plan and description showing the position in which it is proposed to lay any underground cable ways or cables and the design thereof and no work shall be commenced in connexion with the laying of any such cable ways or cables until such plan and description has been approved by the surveyor in writing under his hand which approval shall not be unreasonably withheld and notice of approval or disapproval shall be given within fourteen days after the delivery of such plan and description failing which the approval shall be deemed to have been given:

(22) The Company shall not without the consent of the corporation in writing under the hand of the town clerk first had and obtained erect within the borough a station for generating electrical power and they shall not supply electricity within the borough except for the purposes of their tramway undertaking:

(23) Subject to the provisions of this Act and of any requirements made by the Board of Trade and of any byelaws for the time being in force with respect to the said tramways the corporation may at such times and in such manner as they think fit between the hours of twelve at night and five in the morning but so as not to unduly impede obstruct or interfere with the ordinary traffic on the tramways use the tramways by carriages



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moved by horses or otherwise for the removal of night soil and house refuse and snow and for the conveyance of scavenging stuff road metal and other materials required by the works of the corporation free of all tolls and charges in respect of such use Subject as aforesaid the corporation may enter into agreements with the Company for the purposes of this subsection and the corporation shall have power to form connexions between the said tramways and any yards or works belonging to the corporation. Provided that in the construction of any such connexion no damage shall be done to the said tramways and that the corporation shall have first submitted to the Company plans showing such connexions or works and the mode of constructing the same Provided also that the corporation shall not save by agreement with the Company be entitled to use or employ for such purposes any carriages trucks horses electric current or other motive power or officers or servants of the Company And provided further that the corporation shall indemnify the Company against any damage done to the permanent way by such use :

(24) If the Company at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the tramways within the borough the Company shall at their own cost remove the snow or other matter to the sides of the road but so as not to impede or obstruct the drainage or the ordinary traffic on the road and the Company shall not use salt or other unsuitable material for thawing the snow on any road Provided that any snow or other matter so removed by the Company from the tramway shall not be allowed to remain on the road but shall at once be taken away by the Company and in default the corporation shall be at liberty to remove the same and recover the cost from the Company :

(25) The regulations to be made as to the stopping of cars shall be such as the corporation reasonably approve :

(26) If any dispute or difference shall arise between the corporation and the Company concerning any matter or thing contained or referred to in this section or as to the reasonableness of any requirement of the surveyor or of the corporation or as to the rights duties or liabilities of either party under this section then the dispute or difference shall be referred to an arbitrator to be agreed on between the parties or in default to be appointed on the application of either party by the Board of Trade.



**36.** For the protection of the Surbiton Urban District Council (in this section referred to as "the council") the following provisions shall have effect (that is to say):—

A.D. 1901.  
For protection of  
Surbiton  
Urban  
District  
Council.

- (1) Before commencing to construct or lay down any tramway by this Act authorised in Ewell Road or Ditton Hill Road the Company shall so far as they may be empowered by the council so to do take from the footpaths on each side of such roads and make part of the carriageways thereof so much of such footpaths as will be sufficient to leave a space of not less than nine feet six inches between the outside of the footpath and the nearest rail of the tramway and shall at their own expense carry out such work and put the same in proper condition both as to the altered parts of the footpaths channels and kerbs and the added parts of such carriageways :
- (2) If the tramways authorised to be constructed under this Act shall pass over or interfere with any manhole surface or foul water sewer or drain which in the opinion of the surveyor to the council it would be dangerous or inconvenient to retain in its position under the said tramways the Company shall at their own expense take up such manhole surface or foul water sewer or drain and relay or replace the same in the part of the road not occupied by the said tramways to the satisfaction of the said surveyor and shall at the like expense and to the like satisfaction set back any stand-post used for watering roads so that for a distance of twenty-five feet on either side of such post there shall be not less than twelve feet from the outer rail of the tramway :
- (3) If the council shall at any time take up any part of the tramway track in order to gain access to or to repair alter or reconstruct any manhole surface or foul water sewer or drain or for the purpose of constructing any new manhole surface or foul water sewer or drain or extending the same the tramway track shall be restored and replaced by the council at their expense and any additional expense imposed upon the council by reason of the existence of the said tramways in the road shall be borne by the Company and the powers herein conferred shall be in addition to and not in derogation of the powers conferred by sections 32 and 33 of the Tramways Act 1870 :
- (4) If the Company at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the said tramways the Company shall at their own cost remove the snow or other matter to the side of the tramway but so as not to impede or obstruct the drainage or the ordinary traffic



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on the road and the Company shall not use salt or other unsuitable material for thawing the snow in any road. Provided that any snow or other matter so removed by the Company from the tramway shall at once be taken away by the Company and in default the council shall be at liberty to remove the same and recover the cost from the Company.

(5) The Company shall pave the portion of roadway within the district repairable by the Company under the provisions of the Tramways Act 1870 with approved wood blocks to the reasonable satisfaction of the surveyor of the council.

For protection of urban district council of Esher and the Dittons.

**37.** For the protection of the urban district council of Esher and the Dittons (in this section called "the council") the following provisions shall have effect:—

(1) Concurrently with the construction of the tramways within the district of the council the Company will on the condition herein-after expressed expend a sum not exceeding two thousand pounds in executing the following works videlicet:—

(a) The work of widening to a width of forty feet so much of Ember Lane Embercourt Road Station Road and the new road shown on the deposited plans as lies within the district and is traversed by the tramways;

(b) The work of providing easy curves at all right angled turnings of the tramways such curves to have at the back line of each footpath a radius of not less than twenty feet;

(c) The work of lowering the high path in Station Road to a level corresponding with the level of the other path in such road;

on condition and provided that the council do and shall at their own cost simultaneously acquire and hand over to the Company the various strips of land needed for the execution of the works (a) (b) and (c) aforesaid:

(2) When constructing the tramway at the four cross roads by Thames Ditton Railway Station the Company shall:—

(a) Alter the gradients of the highways under the railway arches to the reasonable satisfaction of the surveyor to the council;

(b) Arrange that the water mains at the point by Thames Ditton Railway Station where the gradient of the road is altered shall be efficiently protected from damage due to the passage over such road of the steam rollers of the council;



(c) Pave the entire width of the carriageway of such road at the point last aforesaid where the gradient is so altered; A.D. 1901.

(d) Where needed alter any surface water drains at the point aforesaid:

(3) In constructing the proposed new road from Portsmouth Avenue to High Street and shown on the deposited plans the Company shall make the said road up to the standard of work carried out by the council under the Private Street Works Act 1892 to the reasonable satisfaction of the said surveyor and shall maintain the said new road as also so much of Portsmouth Avenue as extends from its junction with the intended new road to the main road during the period of twelve calendar months from the time at which they are thrown open for public traffic.

(4) When submitting to the Surrey County Council plans for the proposed widening of Windows alias Winter's Bridge the Company shall submit to the council duplicates of the said plans for their consideration and the Company will in carrying out the said widening endeavour to consult the wishes of the council so far as may be reasonably possible having regard to the circumstances of the case.

(5) When fixing the stopping places for the cars in the district the Company shall consult and comply with the reasonable wishes of the council on that subject and shall also submit for the approval of the council the design of trolley wire standard to be employed and shall allow the council to use the standards if required for their electric lighting purposes provided such user does not interfere with the efficient electrical working of the tramways and the council shall have the right to determine before the construction of the tramways whether the bracket or span wire system shall be employed in any road or street within the district:

(6) The fares by the workmen's cars to be run within the district in pursuance of the section of this Act whereof the marginal note is "Cheap fares for labouring classes" shall average one farthing a mile the minimum fare being one penny with return fare of one penny for a distance under two miles:

(7) In consideration of the variation in the terms of purchase contained in the Tramways Act 1870 effected by the section of this Act whereof the marginal note is "Future purchase of undertaking by local authorities" and until purchase of the tramways within the district the Company shall pay to the



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council the sum of one hundred and fifty pounds per annum commencing from the date of the opening for public traffic of any part of the said tramways by equal quarterly payments on the usual quarter days in every year the first of such quarterly payments or a due proportion thereof to be made on the quarter day next after the said day of opening of any part of the said tramways :

- (8) If any dispute or difference shall arise between the council and the Company or as to the reasonableness of any requirement of the council or of the said surveyor or as to the rights duties or liabilities of either the Company or the council under this section or as to any other act matter or thing regulated by or comprised in this section then and in every such case the dispute or difference shall be referred to an arbitrator to be agreed on between the parties or in default to be appointed by the Board of Trade and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889 or any then subsisting statutory modification thereof.

For protection of  
Molesey  
Urban  
District  
Council.

**38.** Notwithstanding anything in this Act contained or shown on the deposited plans the following provisions shall have effect for the benefit and protection of the East and West Molesey Urban District Council (that is to say) :—

- (1) In this section the expression “the district” means the East and West Molesey Urban District and the expression “the council” means the urban district council for that district :
- (2) Before any portion of the tramways within the district is open for public traffic the Company shall unless the council otherwise agree construct the street widenings and improvements and the widening of the bridges over the rivers Mole and Ember as shown upon the plan signed by James Clifton Robinson on behalf of the Company and John Stevenson on behalf of the council and thereon coloured red and shall also complete the widening of the carriageway by a reduction of the footways of the Bridge Road as shown on the said plan and thereon coloured green and no portion of Tramway No. 10 within the district shall be so laid that a less space than nine feet six inches shall intervene on either side of the road between the outside of the footpath or the edge of the roadway where no footpath exists and the nearest rail of such tramway Provided that before the Company commence the reduction of the footpath on the west side of the said road between the Thames Hotel and the Prince of Wales Hotel they shall acquire and dedicate to the public as part of the footpath



and shall pave to the satisfaction of the council the strip of open land lying between the front of the houses on that side of the road and the existing footpath: A.D. 1901.

- (3) The said widenings and improvements shall be completed paved kerbed and channelled by the Company to the satisfaction of the council with a footpath in each case as indicated on the said plan and the footpaths where reduced as aforesaid shall be properly paved kerbed and channelled by the Company to the like satisfaction:
- (4) The portions of the roadways repairable by the Company within the district shall be paved with hard wood blocks of such character and quality as shall be approved by the council and based on a sufficient bed of concrete and grouted with materials to be approved by them and shall be renewed and made good when required by them:
- (5) The Company shall deliver any surplus paving metalling or material as is referred to in section 29 of the London United Tramways Act 1898 incorporated with this Act excavated from any road within the district at such places within the district as the surveyor to the council may from time to time require and the said section in its application to the paving metalling and material of roads within the district shall be read and have effect accordingly:
- (6) The portions of the said Tramway No. 10 which are shown on the said signed plan as single lines shall be constructed and maintained as single lines and shall be laid as nearly as possible in the middle of the roadway in which the same will be situate as proposed to be widened as aforesaid. Provided that if the portion of the road in which any such portion of tramway or any part thereof will be situate is at any future date widened by the Company so that a space of not less than nine feet six inches would intervene between the outside of the footpath on both sides of the road and the nearest rail of the tramway if laid as a double line as shown on the deposited plans such portion of tramway or part thereof as the case may be may be so laid:
- (7) The Company shall not under the section of this Act of which the marginal note is "Alteration of tramways" alter any tramways within the district without the consent of the council under their common seal:
- (8) In consideration of the provisions of this Act with regard to the rights of the council to purchase the portion of Tramway No. 10 situate within the district the Company shall as from



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the opening of such portion of tramway for public traffic and until the purchase thereof by the council pay to the council by equal quarterly payments on the usual quarter days the sum of one hundred pounds per annum :

(9)—(a) The size position design and construction of all posts standards and brackets and their several attachments erected within the district shall be such as the council may reasonably approve or as in case of difference between the council and the Company may be determined by the Board of Trade :

(b) The council shall upon giving not less than fourteen days' notice to the Company of their desire to do so have the right to use any posts standards and brackets erected in the streets within the district for the support of any street lamps or any fire-alarms name-plates or street indicators. Provided that in the exercise of the powers of this subsection no avoidable damage shall be caused to such posts standards or brackets and no obstruction or interference shall be caused to or with the working by the Company of the undertaking and if the council occasion any damage in the exercise of the powers of this subsection they shall pay compensation to the Company the amount thereof to be determined in default of agreement by an arbitrator as hereafter provided ;

(c) All such posts standards brackets and other works erected by the Company in any street within the district as are usually painted or as are suitable to be painted shall be painted by the Company with good oil paint of a colour or colours to be approved by the council at least once in every three years and no advertisement shall be displayed thereon except advertisements relating to the working or use of the tramways :

(10) The Company shall not use the tramways within the district for the conveyance of animals minerals or goods except under regulations to be approved by the council :

(11) If the tramways within the district shall pass over or interfere with any manhole surface or foul water sewer or pipe which in the opinion of the council it would be dangerous or inconvenient to retain in its position under the said tramways the Company shall at their own expense take up such manhole surface or foul water sewer or pipe and relay or replace the same in the part of the road not occupied by the said tramways to the satisfaction of the council :

(12) Subject to the provisions of this Act and of any requirements made by the Board of Trade and of any byelaws for the time being in force with respect to the said tramways the council



A.D. 1901.

may at such times and in such manner as they think fit between the hours of twelve at night and five in the morning but so as not to unduly impede obstruct or interfere with the ordinary traffic on the tramways use the tramways by carriages moved by horses or otherwise for the removal of night soil and house refuse or snow and for the conveyance of scavenging stuff road metal and other materials required by the works of the council free of all tolls and charges in respect of such use. Subject as aforesaid the council may enter into agreements with the Company for the purpose of this subsection and the council shall have power to form connexions between the said tramways and any yards or works belonging to the council. Provided that in the construction of any such connexions no damage shall be done to the said tramways and that the council shall have first submitted to the Company plans showing such connexions or works and the mode of constructing the same. Provided also that the council shall not save by agreement with the Company be entitled to use or employ for such purposes any carriages trucks horses electric current or other motive power or officers or servants of the Company. And provided further that the council shall indemnify the Company against any damage done to the permanent way by such use:

(13) If the Company at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the tramways within the district the Company shall at their own cost remove the snow or other matter to the side of the road but so as not to impede or obstruct the drainage or the ordinary traffic on the road and the Company shall not use salt or other unsuitable material for thawing the snow on any road. Provided that any snow or other matter so removed by the Company from the tramway shall not be allowed to remain on the road but shall be at once taken away by the Company and in default the council shall be at liberty to remove the same and recover the cost from the Company:

(14) All work in connexion with the tramways and works within the district shall be proceeded with continuously and completed with all reasonable despatch:

(15) If any dispute or difference shall arise between the council and the Company under this section as to the reasonableness of any requirements of the council or as to any other act matter or thing referred to in this section such dispute or difference shall be referred to an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the Board of Trade.



A.D. 1901.

For protection of  
the Maldens  
and Coombe  
Urban  
District  
Council.

**39.** For the protection of the Maldens and Coombe Urban District Council (in this section referred to as "the council") the following provisions shall have effect (that is to say) :—

- (1) All consents approvals requisitions certificates and notices to be given by or obtained from the council shall be in writing signed by their clerk and all notices required by this section to be given by the council to the Company shall be sufficiently served and given if left at the principal office for the time being of the Company or posted in a letter addressed to the Company at such office :
- (2) The following words and expressions shall have the following meanings respectively " the surveyor " shall mean the surveyor to the council " the tramway track " shall mean that part of any highway within the district (including roads or roadways under bridges) which the Company are required to maintain and repair by section 28 of the Tramways Act 1870 " the said tramways " shall mean so much of the tramways as lies within the district :
- (3) The Company shall before commencing any works within the district lay before the council a description with proper plans and drawings of the cars and other rolling stock proposed to be used by the Company and also a statement with plans and specifications showing the method of using electric motive power proposed to be adopted :
- (4) When the Company have opened or broken up any portion of the road within the district they shall in addition to the obligations imposed upon them by section 27 of the Tramways Act 1870 restore the same to a good and proper condition to the satisfaction of the council without reference to its previous condition and shall pay all expenses of the repairs of such portion of the road necessitated by such opening or breaking up for six months after the same is restored and the Company shall at their sole expense pave and keep paved with good hard wood or other material approved by the council the tramway track throughout the district :
- (5) The Company at the time of giving notice to the council of their intention to open or break up the roads for the purpose of laying down any of the said tramways shall also submit to the council a plan and section showing the proposed mode of constructing laying down and maintaining the same and a statement of materials intended to be used therein and the Company shall not commence such works or any of them until the last-named plan section and statement have been approved



by the surveyor in writing but such approval shall not be unreasonably withheld and notice of approval or disapproval shall be given within twenty-eight days after the receipt of the said plan section and statement and in default of such notice the approval shall be assumed and after such approval the works shall be executed in accordance with such plan section and statement as so approved. All notices and plans shall be deposited twenty-one days at least before the commencement of the works specified or shown therein and all plans shall be deposited in duplicate :

(6) If the said tramways shall pass over or interfere with any manhole surface or foul water sewer or pipe which in the opinion of the surveyor it would be dangerous or inconvenient to retain in its position under the said tramways the Company shall at their own expense take up such manhole surface or foul water sewer or pipe and relay or replace the same in the part of the road not occupied by the said tramways to the satisfaction of the surveyor :

(7) The Company shall erect all posts or standards rosettes or wall plates which are required for the purpose of carrying the overhead wires within the district in such positions and of such heights and of such design as shall be reasonably approved by the surveyor :

The Company shall at all times allow the council to use free of charge such of the said standards and posts as may be found convenient for attaching thereto the necessary wires and apparatus for electric and other lighting. Provided that such user by the said council shall not in any way hinder the efficient working of the said tramways by electric traction. The council shall also be allowed upon the same conditions to use any post or standard as may be considered convenient or necessary by the council as ventilation shafts for their sewers and if at any time in consequence of the discontinuance or abandonment of the said tramways the overhead wires should be removed the posts or standards so used as ventilating shafts by the council shall thereupon become the absolute property of the council :

(8) The Company shall place an electric lamp either on the existing drinking fountain column or on a standard to be erected by them at the tramway terminus opposite the Norbiton Park Hotel New Malden and supply free of charge electric current for the lighting of such lamp during such hours between sunset and sunrise as the cars shall be running :



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(9) In the event of the roadway under the railway in Kingston Road New Malden being lowered by the Company they shall when carrying out such work construct a twelve-inch clean water drain from where the roadway shall be so lowered to the Hogg's Mill River with all necessary gullies and the work shall be constructed in accordance with a plan to be prepared by the surveyor at the expense of the Company:

(10) If the Company shall at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the said tramways the Company shall at their own cost remove the snow or other matter to the side of the road but so as not to impede or obstruct any drainage or the ordinary traffic on the road and the Company shall not use salt or other unsuitable material for thawing the snow on any road. Provided that any snow or other matter so removed by the Company from the tramway track shall not be allowed to remain on the road but shall at once be taken away by the Company and in default the council shall be at liberty to remove the snow and recover the cost from the Company:

(11) The Company shall indemnify the council against any loss which the council may sustain by reason of any non-payment of the county contribution towards the maintenance of roads along which the said tramways will run during the financial years or part of years in which the tramway works shall be in course of construction but the council shall use their best endeavours to obtain payment of the full amount of the contributions during this period:

(12) The Company shall at a cost not to exceed three hundred and sixty-two pounds provide the necessary pipes and material and shall pipe and fill in the ditch on the southern side of Kingston Road New Malden between the railway bridge in the said road and the boundary of the borough of Kingston and shall properly form and kerb a footpath on that side of the said road. The whole of the work to be done to the reasonable satisfaction and under the superintendence of the surveyor and if the cost shall be found to exceed the said sum of three hundred and sixty-two pounds the excess shall be paid by the council:

(13) If any dispute or difference shall arise between the council and the Company concerning any matter or thing herein contained or referred to or as to the reasonableness of any requirement of the surveyor or of the council or as to the rights duties or liabilities of either party hereunder then and in every such case the dispute or difference shall be referred to an



arbitrator to be agreed on between the parties or failing agreement to be appointed on the application of either party by the Board of Trade and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889.

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40. For the protection of the Hampton Urban District Council (in this section called "the council") the following provisions shall have effect:—

For protection of Hampton Urban District Council.

(1) Subsections (1) (2) (3) (4) (7) (8) and (9) of section 37 of the London United Tramways Act 1900 (save so much of subsection (9) thereof as relates to subsections (7) and (10) of the section of the said Act whereof the marginal note is "For the protection of the Twickenham Urban District Council") shall apply to such of the tramways as are within the district of the council as if the same had been expressly re-enacted in this Act with reference thereto:

(2) If any dispute or difference shall arise between the Company and the council as to the reasonableness of any requirements of the council or of their surveyor or as to the rights duties or liabilities of either the Company or the council under this section or under the said section 37 of the London United Tramways Act 1900 or as to any other act matter or thing regulated by or comprised in either of those sections then and in every such case the dispute or difference shall be referred to an arbitrator to be agreed on between the parties or failing such agreement to be appointed by the Board of Trade on the application of either party and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889.

41. Notwithstanding anything in this Act contained or shown on the deposited plans the following provisions for the protection of the urban district council for the urban district of Hampton Wick (in this section referred to as "the council") shall have effect (that is to say):—

For protection of urban district council of Hampton Wick.

(1) The Company shall not save in cases of emergency arising from accidents or from circumstances beyond their control use either of the junctions of the Tramways Nos. 10 and 10E by this Act authorised with the authorised tramways of the Company in Hampton Court Road and High Street Hampton Wick as a terminal point in connexion with their traffic.

(2) The Company shall pave with hard wood blocks of such quality and character as the council may approve so much of Hampton Court Road as extends from Church Grove to its junction with the approach road to Kingston Bridge as is indicated and coloured dark brown on the plan signed in



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duplicate by James Clifton Robinson on behalf of the Company and J. Nixon Horsfield on behalf of the council:

- (3) Subsections (3) (4) and (6) of section 38 (For the protection of the Hampton Wick Urban District Council) of the London United Tramways Act 1900 shall apply to the tramways by this Act authorised so far as the same will be situate within the urban district of Hampton Wick and to the standards trolley wires and works connected therewith as if the same had been expressly re-enacted in this Act with reference thereto.

For protection of  
Heston and  
Isleworth  
Urban  
District  
Council.

**42.** For the protection of the Heston and Isleworth Urban District Council (in this section referred to as "the council") the following provisions shall have effect (that is to say):—

- (1) The provisions contained in section 35 (in this section called "the said section") of the London United Tramways Act 1900 (in this section called "the Act of 1900") shall except as herein-after provided apply as well to all works authorised by this Act and all roads within the district of the council (in this section called "the district") the levels of which are altered or which are in any way affected by any works authorised by this Act as well as to the tramways works and roads mentioned in the said section in the same manner as if the expression "this Act" in the said section had included this Act:
- (2) Subsections (18) to (21) of the said section are hereby repealed:
- (3) Subsections (16) and (17) of the said section shall apply to all lands which the Company are by this Act empowered to take for the purpose of widening the said Twickenham Road:
- (4) All moneys payable by the Company to the council or by the council to the Company under subsection (17) of the said section shall be paid within three months of the completion of the work therein mentioned and the said subsection shall be read as if the words "three months" were substituted for the words "one month" in the said subsection. All moneys which shall become payable by the council to the Company under the said subsection (17) or this Act shall for the purpose of providing the same be deemed to be expenses incurred by the council for the purposes of the Public Health Act 1875:
- (5) The Company shall not open for traffic any of the tramways in the Twickenham Road authorised by the Act of 1900 until the widenings of the said Twickenham Road in the Act of 1900 and this Act mentioned have been completed:



A.D. 1901.

(6) The Company shall not without the previous consent in writing of the council exercise the powers given to them by the section of this Act of which the marginal note is "Alteration of tramways" in such a manner that any rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath upon either side of the road:

(7) Notwithstanding anything to the contrary contained in this Act or the Act of 1900 or the Tramways Act 1870 the time at which the council shall be first entitled to exercise their power under section 43 of the Tramways Act 1870 or the Act of 1900 to purchase Tramway No. 3 described in and authorised by the Act of 1900 and Tramway No. 6 described in and authorised by the Act of 1898 shall be six months after the expiration of a period of twenty-five years from the passing of this Act and six months after every subsequent period of seven years:

(8) Subsection (36) of the said section is hereby repealed.

**43.** From and after the passing of this Act section 30 (For the protection of Kew Observatory) of the London United Tramways Limited (Light Railway Extensions) Order 1898 is hereby repealed and in lieu thereof the provisions of subsection (7) of section 12 (Special provisions as to use of electrical power) of the London United Tramways Act 1899 shall apply to the railways by the said Order authorised as if the last-mentioned section had been expressly enacted in the said Order with reference to the said railways.

Provisions of section 12 (7) of Act of 1899 to apply to Company's light railways.

**44.** The powers granted by the London United Tramways Act 1898 for the construction of the Tramway No. 7 thereby authorised as extended by the London United Tramways Act 1900 are hereby extended and may be exercised by the Company for the period of two years from the twelfth day of August one thousand nine hundred and two and section 35 of the said Act of 1898 shall be read and construed as if the period limited by this Act for the completion of the said tramway had been the period limited by the said Act of 1898 for the completion thereof.

Extension of time for construction of Tramway No. 7 of Act of 1898.

If the said tramway be not completed within the said period of two years then on the expiration of that period the powers for making and completing the same or otherwise relating thereto shall cease except as to so much thereof as shall then be completed.

**45.** In the event of the Company being reconstituted or of a new company being incorporated under the Companies Acts 1862 to 1900 for the purpose of carrying on the undertaking and business

Provisions in event of reconstitution of Company.



A.D. 1901. of the Company the Company may sell and transfer to such reconstituted or new company the undertakings tramways and light railways authorised by the London United Tramways Acts 1873 to 1901 and by the London United Tramways Limited (Light Railway Extensions) Order 1898 and the rights powers and authorities thereunder and in such event the provisions of section 44 of the Tramways Act 1870 and section 68 of the London United Tramways Limited (Light Railway Extensions) Order 1898 shall not apply but the reconstituted or new company shall be under and subject to all the obligations and liabilities of the Company whether to local or road authorities or otherwise howsoever under this or any existing Act Order or Agreement.

Copy of  
Act to be  
registered.

46. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Provision  
as to general  
Tramway  
Acts.

47. Nothing in this Act contained shall exempt the Company from the provisions of any general Act relating to tramways now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates or charges authorised by this Act.

Saving  
rights of  
Crown.

48. Nothing contained in this Act shall authorise the Company to take use or in any manner interfere with any lands or hereditaments or any rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or the Commissioners of Works without the consent in writing of the Commissioners of Woods or the Commissioners of Works as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners are hereby authorised to give) neither shall anything in this Act contained extend to take away prejudice diminish or alter any of the estates rights privileges



powers or authorities vested in or enjoyed or exerciseable by the King's Majesty. A.D. 1901.

49. The Company shall not interfere with any water mains or drains the property of His Majesty connected with Hampton Court Palace or the royal parks or the Longford River so as to alter lower raise or divert the same except with the consent in writing of the Commissioners or First Commissioner for the time being of His Majesty's Works and Public Buildings on behalf of His Majesty for that purpose first had and obtained and all works which such Commissioners or First Commissioner as aforesaid shall sanction under this section shall be done at the expense of the Company and in accordance with the requirements and to the satisfaction of such Commissioners or First Commissioner testified as aforesaid.

For protection of Hampton Court Palace and Longford River.

50. All costs charges and expenses of and preliminary and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.



A.D. 1901,

## SCHEDULES referred to in the foregoing Act.

## FIRST SCHEDULE.

## ROAD OR STREET WIDENINGS.

| No. of Tramway. | Name of Road or Street.     | Borough or Urban District.            | Side or Sides of Road or Street.       | Description.                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|-----------------|-----------------------------|---------------------------------------|----------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 10              | Bridge Road                 | East and West Molesey Urban District. | (a) East -<br>(b) East -<br>(c) East - | Between points respectively 36 yards northward and 40 yards southward from a point in line with the northern side of Palace Road.<br>Between points respectively 86 yards northward and 17 yards southward from a point in line with the southern side of Arnison Road.<br>Between a point 23 yards southward from the principal entrance to East Molesey Lodge and a point 53 yards northward from the south side of the King's Arms Public-house. |
| 10              | Station Road Thames Ditton. | Esher and the Dittons Urban District. | (a) North -<br>(b) South -             | For a distance of 39 yards westward from the Post Office at the junction of that road with High Street.<br>For a distance of 28 yards westward from High Street.                                                                                                                                                                                                                                                                                    |
| 10              | Portsmouth Road             | Esher and the Dittons Urban District. | South -                                | At Winter's Bridge for a distance of 40 yards south-westward from Thorkhill Road.                                                                                                                                                                                                                                                                                                                                                                   |
| 10              | Victoria Road               | Surbiton Urban District.              | North -                                | For a distance of 33 yards from Brighton Road.                                                                                                                                                                                                                                                                                                                                                                                                      |
| 10              | Clarence Street             | Borough of Kingston - upon - Thames.  | (a) North -<br>(b) South -             | Between the King's Arms Public-house and Fife Road.<br>Between points respectively 5 yards eastward and 27 yards westward from a point in line with the eastern side of Fife Road.                                                                                                                                                                                                                                                                  |
| 10A             | Surbiton Crescent.          | Borough of Kingston - upon - Thames.  | North -                                | For a distance of 17 yards from Surbiton Road.                                                                                                                                                                                                                                                                                                                                                                                                      |
| 14              | Ewell Road                  | Surbiton Urban District.              | West -                                 | Between Victoria Road and the northern boundary of the land of the London and South Western Railway.                                                                                                                                                                                                                                                                                                                                                |



SECOND SCHEDULE.

A.D. 1901.

PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED TO BE TAKEN.

| No. on Deposited Plans. | Borough or Urban District.           | Description of Property.                      |
|-------------------------|--------------------------------------|-----------------------------------------------|
| 4                       | East and West Molesey Urban District | Forecourt.                                    |
| 28                      | "                                    | Open forecourt and rolling way.               |
| 29 to 36                | "                                    | Gardens.                                      |
| 8                       | Esher and the Dittons Urban District | Garden.                                       |
| 9                       | "                                    | Garden and surgery.                           |
| 10                      | "                                    | Garden.                                       |
| 11                      | "                                    | Forecourt.                                    |
| 12 & 13                 | "                                    | Gardens.                                      |
| 17                      | "                                    | Garden.                                       |
| 9                       | Surbiton Urban District              | Passage.                                      |
| 15                      | Borough of Kingston-upon-Thames      | Carriageway.                                  |
| 18                      | "                                    | Forecourt.                                    |
| 19                      | "                                    | House and shop.                               |
| 20                      | "                                    | Carriageway.                                  |
| 21 to 25                | "                                    | Houses and shops.                             |
| 26                      | "                                    | Passage.                                      |
| 27                      | "                                    | House and shop.                               |
| 28                      | "                                    | Hall.                                         |
| 29                      | "                                    | Forecourt and garden.                         |
| 30 to 33                | "                                    | Open forecourts.                              |
| 34                      | "                                    | House and shop.                               |
| 35                      | "                                    | Passage.                                      |
| 36 to 38                | "                                    | Houses and shops.                             |
| 39                      | "                                    | Yard and outbuilding.                         |
| 40                      | "                                    | Shop.                                         |
| 38                      | "                                    | Garden yard and outbuilding.                  |
| 40                      | "                                    | Carriageway.                                  |
| 2                       | Acton Urban District                 | Land (site of proposed Catholic Church).      |
| 3                       | "                                    | Forecourt of shop.                            |
| 4                       | "                                    | Forecourt of shop.                            |
| 5 to 9                  | "                                    | Land.                                         |
| 11                      | Heston and Isleworth Urban District  | Meadow and trees.                             |
| 12 to 14                | "                                    | Forecourts.                                   |
| 15                      | "                                    | Yard and outbuilding.                         |
| 16 to 19                | "                                    | Forecourts.                                   |
| 20                      | "                                    | Yard and outbuilding.                         |
| 21                      | "                                    | Disinfecting chamber laundry yard and garden. |
| 22 to 26                | "                                    | Forecourts.                                   |

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